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|            |                                                          | <p>In opposition, Plaintiff does not deny that Section 871.24 is applicable to this case. However, Plaintiff contends that, because the statute does not expressly state that compliance must be pled, there is no pleading requirement. In addition, Plaintiff contends that the statute was in fact complied with prior to the filing of the Complaint.</p> <p>While the statute does not address the pleading requirements, courts interpreting statutes in other contexts have held that compliance with statutory prerequisites is an element that must be pled by the plaintiff. (See, e.g., <i>Caliber Bodyworks, Inc. v. Superior Ct.</i> (2005) 134 Cal. App. 4th 365, 371 (pleading in PAGA action); <i>Kim v. Konad USA Distribution, Inc.</i> (2014) 226 Cal.App.4th 1336, 1345-46 (pleading requirement in actions for FEHA violations).</p> <p>Accordingly, the motion is granted.</p> <p>Defendant to give notice</p> |
| <b>105</b> | <b>Abinante vs. Collins</b><br><br><b>25-01457284</b>    | <p>1. Motion to Appear Pro Hac Vice x 2</p> <p>Plaintiffs Dr. Matthew Abinante, D.O., Rume Health, LLC, and Rume Medical Group, Inc. move this Court for orders granting the Applications of Kelly B. Kramer and Hiral D. Mehta for Admission Pro Hac Vice as counsel herein. (ROAs 369, 370).</p> <p>Motions are granted per CRC 9.40(a).</p> <p>2. Case Management Conference</p> <p>Moving party to give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| <b>106</b> | <b>Prime Healthcare Services - Garden Grove, LLC vs.</b> | Motion to Seal                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |